

This Instrument Prepared by/Return to:
DWIGHT I. COOL, ESQUIRE
Pohl & Short, P.A.
280 West Canton Avenue, Suite 410
Winter Park, Florida 32790

LARRY WHALEY
OSCEOLA COUNTY, FLORIDA
CLERK OF CIRCUIT COURT

3P

CL 2004012318 OR 2427/2147
HGP Date 01/22/2004 Time 14:12:17

**AMENDMENT TO ACADIA ESTATES (FORMERLY WYNDHAM POINTE)
COMMUNITY DECLARATION OF EASEMENTS,
COVENANTS, CONDITIONS AND RESTRICTIONS**

THIS AMENDMENT is made as of the 15th day of December, 2003, by ACADIA HOMES, L.L.C., a Florida limited liability company (the "Owner").

W I T N E S S E T H:

WHEREAS, this Amendment pertains to that certain Wyndham Pointe Community Declaration of Easements, Covenants, Conditions and Restrictions, dated December 7, 2001, and recorded in Official Records Book 1969, Page 105, Public Records of Osceola County, Florida, as amended (the "Declaration"), initially pertaining to the Plat of WYNDHAM POINTE, recorded in Plat Book 13, Page 84, Public Records of Osceola County, Florida; and

WHEREAS, the name of the subdivision has been changed from Wyndham Pointe to Acadia Estates; and

WHEREAS, the Owner owns all of the property subject to the terms of the Declaration; and

WHEREAS, the Owner desires to amend the Declaration as set forth in this Amendment;

NOW THEREFORE, the Owner hereby declares that the Declaration is amended as follows:

1. The title of the Declaration shall be Acadia Estates Community Declaration of Easements, Covenants, Conditions and Restrictions.
2. The "Declarant" shall be Acadia Homes, L.L.C., a Florida limited liability company.
3. The next to the last sentence of Section 38 of the Declaration is hereby deleted in its entirety and the following is hereby substituted therefor:

A garage may be converted to living space, provided that such conversion shall comply with all applicable governmental codes and regulations, and provided that the garage door appearance remains without modification.

4. The following is hereby added at the end of Section 37 of the Declaration:

The landscaped areas of all Lots, whether sodded or otherwise landscaped, shall be maintained by the Association, and all such maintenance costs shall be collected by the Association as part of the Annual Assessments.

5. Section 47 of the Declaration is hereby deleted in its entirety and the following is hereby substituted therefor:

47. Home Size. The home constructed on each Lot shall have a minimum of 1,500 square feet of living area. For purposes of this provision, the term "living area" refers to air conditioned space, under roof, and does not refer to patios, verandas, porches, and similar areas. In addition, no residence or other improvements located on Lot 18 or Lot 19 shall exceed one story in height, except that improvements located on Lot 18 or Lot 19 may exceed one story in height in the event that there are no rear facing windows on the second story.

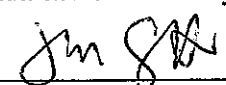
6. Except as amended herein, the Declaration shall remain unmodified.

IN WITNESS WHEREOF, the Owner has hereunto executed this instrument as of the date first written above.

Signed, sealed and delivered in the presence of:

ACADIA HOMES, L.L.C.,
a Florida limited liability company


Printed Name: Betty B. Lawson

By:  . AA
John Gigliotti, Authorized Agent


Printed Name: OWEN LAGUARDIA

Address: 400 W. New England Avenue
Suite 9
Winter Park, Florida 32789

STATE OF FLORIDA)
COUNTY OF ORANGE)

The foregoing instrument was acknowledged before me this 13th day of January, 2004, by John Gigliotti, as Authorized Agent of Acadia Homes, L.L.C., a Florida limited liability company, on behalf of the company. He is [+] personally known to me or [] has produced _____ as identification.

NOTARY PUBLIC

Signature: Betty B. Lawson

(NOTARY SEAL)

MY COMMISSION EXPIRES:



Amendment to Acadia Estates HOA

I hereby agree to allow lots 18 & 19 in Acadia Estates to have two square windows in Opaque glass, placed high in each corner of the rear middle bedroom/loft.

Signature

George Chan

Date

Sept. 7, 2004